

25CHCV00021 25CHCV00021

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-13

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Case Number: 25CHCV00021 Hearing Date: July 13, 2026 Dept: F47

Dept. F47

Date: 7/13/26 TRIAL DATE: 5/10/27

Case #25CHCV00021

MOTION TO

COMPEL FURTHER RESPONSES

(Form

Interrogatories, Set 1 & Special Interrogatories, Set 1)

Motion filed on 2/5/26.

MOVING PARTY: Plaintiffs Avo Kozukarayan, Sako Manougian
and Eddie Edmond Ouzounian

RESPONDING PARTY: Defendant T.H.

Investments, LLC

NOTICE: ok

RELIEF REQUESTED: An order compelling Defendant
T.H. Investments, LLC to serve further responses, without objections, to
Plaintiffs' Form Interrogatories, Set 1, and Special Interrogatories, Set 1. Plaintiffs also request sanctions in the
amount of \$5,735.00.

RULING: The motion is granted, in part, and

denied, in part, as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an incident that occurred on 3/18/23 between patrons of Drifters Bar and Pizzeria (the Restaurant) which is located at or near 25850 Tournament Rd., Valencia, CA 91355 (the Premises). (Complaint ¶11). Plaintiffs Avo Kozukarayan, Sako Manougian and Eddie Edmond Ouzounian (collectively, Plaintiffs) allege that as they were getting ready to leave the Premises, they were attacked by other patrons and the attack continued once Plaintiffs exited the Premises. (Id. ¶¶12-13). Plaintiffs allege that security guards at the Premises did not intervene to stop the altercation. (Id. ¶13). Plaintiffs allege that defendants, including T.H. Investments, LLC (Defendant), owned, leased, occupied, controlled the Premises and their negligence was a substantial factor in causing Plaintiffs' injuries. (Id. ¶¶14-16, 18, 20, 23, 36). Defendant owns the commercial property on which the Restaurant operated. The Restaurant was owned and operated by tenant DRD Enterprises, Inc. (DRD) pursuant to a written commercial lease. (Abrams Decl., Ex.A, pp.1-27). DRD has since filed for Chapter 7 bankruptcy. Id.

On 1/3/25, Plaintiffs filed this action against Defendant and others alleging causes of action for: (1) Premises Liability and (2) Negligence and Negligent Hiring, Security, Training, Supervision and/or Retention. After its demurrer was overruled, on 5/5/25, Defendant filed an answer to the complaint.

On 8/22/25, Plaintiffs served Form Interrogatories, Set 1, and Special Interrogatories, Set 1, on Defendant. (Asryan Decl., Ex.1). On 10/3/25, Defendant served responses to the interrogatories which Plaintiffs found to be deficient. (Id., Ex.2). On 11/12/25, Plaintiffs began the meet and confer process regarding the deficiencies in the responses to the interrogatories and the parties ultimately extended the deadline for Plaintiffs to file a motion to compel further responses until 2/5/26. (Id, Ex.3-6). Defendant did not provide further responses. (Id., Ex.7).

Therefore, on 2/5/26, Plaintiffs filed and served the instant motion seeking an order compelling Defendant to serve further responses, without objections, to Plaintiffs' Form Interrogatories, Set 1, Nos. 4.1, 13.1, 13.2, 15.1, 16.1, 16.2, 16.3, 16.5 and 16.9, and Special

Interrogatories, Set 1, Nos. 1, 3, 25, 28, 42, 43 and 47. Plaintiffs also request sanctions in the amount of \$5,735.00. Defendant has opposed the motion and Plaintiffs have filed a reply to the opposition.

PROCEDURAL DEFECTS

Plaintiffs have improperly combined two motions into one. Since the motion concerns further responses to Form Interrogatories and Special Interrogatories and is supported by two different separate statements, Plaintiff should have filed two separate motions with two separate reservation numbers. Each discovery vehicle (e.g., Form Interrogatories, Special Interrogatories, Requests for Production, and Requests for Admissions) requires its own motion. The parties are warned that failure to file separate motions in the future may result in matters being placed off calendar.

In violation of CRC 3.1110(f)(4), Defendant has failed to electronically bookmark the exhibits attached to the opposition. Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be refiled in compliance with the rule, papers not being considered and/or the imposition of sanctions.

ANALYSIS

CCP 2030.220 provides:

“(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible.

(c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.”

CCP 2030.300(a) provides:

“(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.”

FORM INTERROGATORIES

Form Interrogatory 4.1 seeks information about any insurance policies through which Defendant might be insured for the damages, claims or actions that have arisen from the incident. Defendant failed to provide all of the information requested in the subparts of the interrogatory (e.g. the address of the insurance company; the name, address, and telephone number of each named insured; limits of coverage for each type of coverage contained in the policy; whether there is a reservation of rights or controversy or coverage dispute). The fact that Plaintiffs may have subsequently obtained this information through other discovery means does not excuse Defendant's failure to provide a proper response to this interrogatory when the information was available to it.

Form Interrogatory 13.1 asks whether Defendant or anyone acting on Defendant's behalf conducted surveillance of any individual involved in the incident or any party to this action and if so, provide information about same. Defendant's response improperly defines “surveillance” to mean “inspection;” states “no” and then explains that Defendant was not on notice of the incident before being served with this action. Defendant's response does not

answer the question asked (e.g. Defendant could have conducted surveillance of one or all of the Plaintiffs after being served with the action).

Form Interrogatory 13.2 asks whether a written report on the surveillance has been prepared and, if so, asks for details of same. Defendant provides the same improper response as set forth in response to Form Interrogatory 13.1.

Form Interrogatory 15.1 asks Defendant to identify each denial of a material allegation and each special or affirmative defense in its pleadings and for each provide factual and other supporting information. Defendant's response fails to identify each denial of a material allegation and/or each special or affirmative defense. Additionally, Defendant fails provide the name, addresses and telephone numbers of all persons who have knowledge of those facts as requested in subpart (b).

Instead, Defendant merely states "DRD Enterprises, Inc. and its guarantors; officers of TH Investments LLC.

Defendant did not provide any response to subpart (c) which asks Defendant to identify documents and other tangible things that support its denial or special or affirmative defense and to then state the name, address, and telephone number of the person who has each document.

Form Interrogatory 16.1 asks if Defendant contends that any person, other than Defendant or Plaintiffs contributed to the occurrence of the incident or the injuries claimed by Plaintiffs and, if so, requests supporting information. Defendant never directly answers the initial question with a "yes" or "no." It seems that because Defendant responded to the subparts, the answer to the initial question would be "yes." However, Plaintiffs are entitled to a clear and verified answer to the initial question.

If Defendant provides a further response of "yes" to the initial question, the Court finds the remainder of the response to Form Interrogatory 16.1 to be sufficient. Defendant responded to the subparts by "identifying" unknown third-parties present at the incident as described in Plaintiffs' complaint.

Defendant explained that discovery was ongoing and indicated that it did not have any other information at the time.

Contrary to Plaintiffs' assertion, the response is sufficient. Plaintiffs' complaint does not identify the individuals who allegedly attacked Plaintiffs.

(See Complaint ¶¶12, 21). If

Plaintiffs do not know the identities of their alleged attackers, it is not unreasonable that Defendant, who is an entity landlord that was not present at

the time of the incident, also does not have such information. Plaintiffs' argument that a further response to this interrogatory is warranted does not make sense.

Specifically, Plaintiffs argue:

"Defendant's assertion that it has no facts, no witnesses, and no documents supporting its contention is internally inconsistent with its claim that unidentified third parties contributed to the INCIDENT. If Defendant has no factual basis for this contention after a reasonable inquiry, it must affirmatively state that it does not contend any third party contributed. Defendant may not maintain a contention while disclaiming any supporting facts, witnesses, or documents. Nor may Defendant avoid compliance by stating that discovery is ongoing or reserving the right to supplement."

Plaintiffs' own complaint alleges that they were attacked by "other patrons" of the Restaurant. (Complaint ¶¶12, 21). Therefore, based on those allegations, Defendant logically contends that those third parties contributed to the occurrence of the incident or the injuries or damages claimed by Plaintiffs. The fact that Defendant does not have any information as to who those third parties are does not mean that Defendant must answer this interrogatory in the negative. To do so would essentially be saying Plaintiffs' allegations in the complaint regarding being attacked by other unidentified patrons are false.

Form Interrogatory 16.2 asks whether Defendant contends that Plaintiffs were not injured in the incident and, if so, asks for supporting information. Again, Defendant does not answer the initial question, but rather, goes directly to the subparts. In response to subpart (a), Defendant contends that it lacks sufficient information to admit or deny the legitimacy of Plaintiffs' medical records and photographs or the causal relationship of the alleged injuries to the incident. The response is insufficient and evasive.

Form Interrogatory 16.3 asks whether Defendant contends that the injuries or extent of the injuries claimed by Plaintiffs as disclosed in discovery were not caused by the incident and, if so, for each injury provide supporting information. Again,

Defendant failed to answer the initial question and its responses to the subparts make the response incomplete and evasive.

Form Interrogatory 16.5 asks if Defendant contends that any services furnished by any healthcare provider claimed by plaintiff in discovery were not due to the incident and, if so, to provide supporting information. Again, Defendant did not answer the initial question and its responses to the subparts are evasive and incomplete.

Form Interrogatory 16.9 asks if Defendant or anyone acting on Defendant's behalf have any documents concerning claims for personal injuries made before or after the incident by Plaintiffs and, if so, to provide supporting information. Defendant's response does not make sense as Defendant does not provide a response to the initial question, but then responds "no" to subpart (a) which asks for the source of each document. It is not clear if that "no" was in response to the initial question. If so, it is not clear why Defendant responded to subparts (b)-(d).

SPECIAL INTERROGATORIES

Special Interrogatory 1 asks Defendant to identify all persons who have made statements concerning the incident. First, Defendant states that it is unable to respond because it is unsure what is meant by "statement." However, Defendant goes on to state that it does not have any records of any statements made by any party in connection with the incident. The response is evasive because it is not clear if Defendant may be withholding information under the guise that it does not know what "statement" means when the next sentence in the response indicates that Defendant does understand what it means.

Special Interrogatory 3 asks Defendant to describe in detail how the incident occurred.

Defendant responded by stating that its knowledge is limited to the allegations in Plaintiffs' complaint because the premises were in control of the tenant. The response is sufficient because any further information is equally available to Plaintiffs. CCP 2030.220(c).

Special Interrogatory 25 asks Defendant to describe in detail every instance Defendant received a complaint from any person about

fights or physical altercations occurring on the premises before the incident. Defendant's response wherein it claims that term "complaint" is unclear because Defendant is unsure if the term refers to a lawsuit or lay complaint is evasive. The term complaint would include both because a lawsuit would seemingly arise from a lay complaint. The remainder of the response which Defendant limited to "informal grievances" is also evasive because Defendant improperly limited it to "documented occurrences."

As such, it is not clear if Defendant has information about complaints which were never "documented." Further confusing matters, Defendant concludes the response by stating: "Generally speaking, the Responding Party did not receive any notices of any fights occurring within the shopping center. However, without clearer definitions, Responding Party cannot guarantee the completeness of this response." (emphasis added). It is not clear what Defendant means by the qualifier "generally speaking."

Special Interrogatory 28 asks Defendant to describe every incident of assault, battery or physical violence Defendant was aware of that occurred on the premises before the incident.

Defendant has sufficiently responded by stating that based on the legal any lay meanings of the terms, it is unaware of any such incidents at the premises. There is not a statutory requirement that Defendant, an entity, state in its response that it has made an inquiry to its employees, agents, etc.

Special Interrogatory 42 asks Defendant to identify the highest-ranking manager of the premises at the time of the incident, whether or not they were on duty at the time of the incident. Defendant's response indicates that it is not able to provide a meaningful response and why.

The Court finds the response to be sufficient under the circumstances. Moreover, the interrogatory itself is ambiguous as it is not clear if Plaintiffs are seeking the identity of the manager of the Restaurant; the manager of Defendant when Defendant has explained that it does not have managers; a property manager of the shopping center, etc.

Special Interrogatory 43 asks Defendant to "DESCRIBE IN DETAIL all facts regarding if there is video of the INCIDENT." Defendant has responded by indicating that the question is indecipherable and goes on to state to the extent Plaintiffs are asking whether video of the incident exists, Defendant does not have control or access to tenant security systems which they may maintain pursuant to the

lease. Contrary to Defendant's assertion the question is sufficiently clear.

Additionally, while Defendant may not have control over or access to the tenant's security system, the response fails to indicate whether any other video of the shopping center/premises exists.

The fact that Defendant's person most knowledgeable has since testified on the subject does not excuse Defendant's obligation to provide a complete response to this interrogatory.

Special Interrogatory 47 asks Defendant to describe all facts regarding how many surveillance video cameras were at the premises at the time of the incident. Defendant's response indicates that all surveillance and security equipment was the responsibility of the tenant; therefore, Defendant cannot respond. As with interrogatory 43, the response fails to indicate whether any other video of the shopping center/premises exists. The fact that Defendant's person most knowledgeable has since testified on the subject does not excuse Defendant's obligation to provide a complete response to this interrogatory.

Plaintiffs' request for sanctions is defective because the notice of motion does not indicate against whom the sanctions are sought. See CCP 2023.040. Moreover, because Plaintiffs were not completely successful on the motion, the Court finds that imposing sanctions on Defendant and/or Defendant's counsel would be unjust the circumstances. CCP 2030.300(d).

CONCLUSION

The motion is granted as to Form Interrogatories Nos. 4.1, 13.1, 13.2, 15.1, 16.1, 16.2, 16.3, 16.5 and 16.9 and Special Interrogatories Nos. 1, 25, 43 and 47. Defendant is ordered to serve further responses to the foregoing interrogatories within 30 days.

The motion is denied as to Special Interrogatories Nos. 3, 28 and 42.

Sanctions are denied.